

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

# CASE OF MALYSHEV AND OTHERS v. RUSSIA

*(Application nos. 20643/21 and 13 others –*
*see appended list)*

JUDGMENT

STRASBOURG

16 May 2024

*This judgment is final but it may be subject to editorial revision.*



**In the case of Malyshev and Others v. Russia,**

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 April 2024,

Delivers the following judgment, which was adopted on that date:

# PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

# THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

# THE LAW

## I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

## II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

## III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

## IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

## V. REMAINING COMPLAINTS

14. The applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings above, the Court considers that there is no need to deal separately with these remaining complaints.

## VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

# FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 16 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

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|---|---|
| Viktoriya Maradudina | María Elósegui |
| Acting Deputy Registrar | President |

# APPENDIX

## List of applications raising complaints under Article 11 of the Convention
## (disproportionate measures against organisers and participants of public assemblies)

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 1. | 20643/21<br>29/03/2021 | **Aleksandr Vadimovich MALYSHEV**<br>2000 | Aleksandr Yevgenyevich Pomazuyev<br>Vilnius | Rally "Free Navalnyy"<br>Tomsk<br>31/01/2021 | article 20.2 § 5 of CAO | fine<br>RUB 10,000 | Tomsk Regional Court<br>25/02/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 2. | 21563/21<br>01/04/2021 | **Nadezhda Petrovna MAY**<br>1998 | Aleksandr Yevgenyevich Pomazuyev<br>Vilnius | Rally "Free Navalnyy"<br>Tomsk<br>31/01/2021 | article 20.2 § 5 of CAO | fine of<br>RUB 10,000 | Tomsk Regional Court<br>05/03/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 3. | 33593/21<br>22/06/2021 | **Yevgeniy Andreyevich TSVETKOV**<br>1999 | Konstantin Aleksandrovich Markin<br>Velikiy Novgorod | Rally "Free Navalnyy"<br><br>Velikiy Novgorod<br><br>23/01/2021 | article 20.2 § 2 of CAO | detention for 7 days | Novgorod Regional Court<br>04/02/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station before and after compiling an offence report from 2.39 p.m. on 23/01/2021 until the court hearing on 24/01/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,<br><br>Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO. | 5,000 |
| 4. | 58713/21<br>12/11/2021 | **Matvey Aleksandrovich PENKOV**<br>1992 | Konstantin Mikhaylovich Zinovyev<br>Nizhniy Novgorod | Rally "Free Navalnyy"<br><br>Nizhniy Novgorod<br><br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Nizhniy Novgorod Regional Court<br>13/05/2021 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |
| 5. | 224/22<br>26/11/2021 | **Aleksandr Konstantinovich KOZLOV**<br>1995 | Natalya Andreyevna Baranova<br>Moscow | Rally "Free Navalnyy"<br><br>Moscow<br><br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>27/05/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report, detention beyond the three-hour statutory period,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 6. | 830/22<br>01/12/2021 | **Sergey Sergeyevich SAVELYEV**<br>1987 | Darya Dmitriyevna Aksenova<br>Kolomna | Rally "Free Navalnyy"<br>Moscow<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 20,000 | Moscow City Court<br>09/06/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report, detention beyond the three-hour statutory period,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 7. | 2083/22<br>15/12/2021 | **Roman Dmitriyevich POPOV**<br>1997 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Nizhniy Novgorod<br>31/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Nizhniy Novgorod Regional Court<br>16/06/2021 | Art. 5 (1) - unlawful detention - escorting to and detention in the police station before and after compiling an offence report from 1.30 p.m. on 31/01/2021 until 8.50 p.m. on 31/01/2021,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 8. | 2802/22<br>30/12/2021 | **Andrey Vladimirovich STUPIN**<br>1993 | Ivan Yuryevich Zhdanov<br>Vilnius | Rally "Free Navalnyy"<br>Izhevsk<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Udmurtia Republic<br>26/07/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 21/04/2021 for compiling an offence report,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 9. | 3645/22<br>30/12/2021 | **Yevgeniy Yuryevich BYCHENKOV**<br>1979 | Ivan Yuryevich Zhdanov<br>Vilnius | Rally "Free Navalnyy"<br>Vladimir<br>23/01/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Vladimir Regional Court<br>19/07/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 3 p.m. on 23/01/2021 until 3 p.m. on 25/01/2021,<br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 10. | 7328/22<br>27/01/2022 | **Andrey Andreyevich TROITSKIY**<br>1986 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>02/02/2021 | article 20.2 § 5 of CAO | fine of RUB 15,000 | Moscow City Court<br>29/07/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station before and after compiling an offence report from 11 a.m. on 02/02/2021 until 6 p.m. on 02/02/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 11. | 7335/22<br>20/01/2022 | **Kirill Vladimirovich MALYSHEV**<br>1999 | Memorial Human Rights Centre<br>Moscow | Rally "Free Navalnyy"<br>Moscow<br>31/01/2021 | article 20.2 § 6.1 of CAO | fine of RUB 10,000 | Moscow City Court<br>11/08/2021 | Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 12.10 p.m. on 31/01/2021 until 3.50 p.m. on 02/02/2021,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |
| 12. | 9055/22<br>19/01/2022 | **Rada Yevgenyevna SHAKIROVA**<br>2000 | Viktor Valeryevich Kochenkov<br>Izhevsk | Rally "Free Navalnyy"<br>Izhevsk<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Supreme Court of the Udmurtia Republic<br>19/07/2021 | Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 3,500 |
| 13. | 12069/22<br>30/01/2022 | **Svetlana Vladimirovna BAS**<br>1991 | Anna Yevgenyevna Bochilo<br>Barnaul | Rally "Free Navalnyy"<br>Barnaul<br>21/04/2021 | article 20.2 § 5 of CAO | fine of RUB 10,000 | Altay Regional Court<br>11/08/2021 | Art. 5 (1) - unlawful detention - escorting to the police station on 21/04/2021 for compiling an offence report,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

| No. | Application no.<br>Date of introduction | Applicant's name<br>Year of birth | Representative's name and location | Name of the public event<br>Location<br>Date | Administrative / criminal offence | Penalty | Final domestic decision<br>Court Name<br>Date | Other complaints under well-established case-law | Amount awarded for pecuniary and non-pecuniary damage per applicant (in euros)[1] |
|---|---|---|---|---|---|---|---|---|---|
| 14. | 49517/22<br>07/10/2022 | **Ilya Mikhailovich BYSTROV**<br>1999 | Valeriya Aleksandrovna Arshinova<br>Moscow | Anti-war protest<br><br>Moscow<br><br>27/02/2022 | article 20.2 § 6.1 of CAO | fine of RUB 15,000 | Moscow City Court<br>07/06/2022 | Art. 5 (1) - unlawful detention - escorting to the police station on 27/02/2022 for compiling an offence report,<br><br>Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings | 4,000 |

[1] Plus any tax that may be chargeable to the applicants.